comprising Justice K G Balakrishnan and Justice B N Patnaik gave an ambiguous order, refusing to quash the government order, but at the same time saying that the state government has no jurisdiction to file a chargesheet in the case.

The court said, 'It has been held above that the state government has no jurisdiction to file a complaint or a chargesheet in respect of the alleged offences under the IOS Act (Official Secrets Act). Of course, the state in exercise of its power under the Police Act can direct a police officer to do any further investigation. But that power, in our opinion, is circumscribed by the provisions of the IOS Act…'

This, in effect, meant that the Kerala Police could do further investigation into the spy case, but could do nothing with what the findings of the investigation!

In September 1996, Senkumar, the officer in charge of 'further investigation', moved court seeking all records from the CBI. This did not yield any result. So, the officer did something unusual—he sought permission from the CJM, Trivandrum to carry out further investigation as ordered by the government.

He highlighted that part of the Balakrishnan-Patnaik judgment that upheld the government's power to issue the order (without mentioning that the court had also said that the police cannot file a chargesheet). The CJM gave its order on 13 December 1996, permitting further investigation as ordered by the government.

It was a curious case, since the police officer, already armed with a government order, could execute it without a court's permission. So why did he go to the CJM? Well, he wanted to engage me in a longer legal tussle and delay things.

This was more so in the interest of Siby Mathews who did not want to be sacked till he got a voluntary retirement. Siby Mathews stood a fair chance of retiring as the DGP, but his desperation for an 'honourable exit' drove him to voluntary retirement. And Oommen Chandy, who came to power in 2011, posted him as the chief information commissioner of